KiqStat Partner Referral Agreement

Version 2 · KiqStat and Adebayo Daniel

This Agreement governs the Partner's promotion of KiqStat subscriptions and the commission payable for eligible referrals. It records the parties' responsibilities, payment arrangements and procedures for misconduct, termination and disputes.

Key terms at a glance (the clauses below govern if there is any difference)

Term	Agreed position	Clause
Commission	25% of Net Payment on every qualifying payment (Annex A)	4.1, Annex A
Highest rate KiqStat will ever agree	30%	4.8
Earning period	12 months from the referred customer's first successful payment	4.3
Attribution	First click on the Partner's link, account created within 90 days	3.1
Hold	14 days after each payment	5.1
Payout	Monthly, by bank transfer, balances of NGN 10,000 or more	5.2
Pilot	First 90 days after activation, 7 days' notice either way (not for partners who signed Version 1, Annex B)	4.7
After termination	Only customers who had already paid keep earning, to the end of their 12 months	11.3

1 Parties and commencement

1.1 Operator: Betrix Data Technologies Ltd, a company registered in Nigeria (registration number [RC NUMBER]), of [REGISTERED ADDRESS], operating the KiqStat service at kiqstat.app (**KiqStat**). Notices email: support@kiqstat.app.

1.2 Partner: Adebayo Daniel, [an individual / a company, with registration number if applicable], of [ADDRESS] (**Partner**). Notices email: [EMAIL]. KiqStat account email: [EMAIL]. Partner slug: squid.

1.3 Effective Date: [DATE], being no earlier than both parties' acceptance of the completed Agreement. The Agreement continues until terminated under clause 11. Referrals qualify only

after KiqStat confirms activation of the Partner's account and link in writing (**Activation Date**). Pre-activation activity is excluded unless expressly agreed in writing.

2 Appointment and boundaries

2.1 KiqStat appoints the Partner on a non-exclusive basis to refer customers in these approved territories: [TERRITORIES]. Expansion requires prior written approval. KiqStat may decline enrolment or activation on reasonable identity, compliance or fraud grounds.

2.2 The Partner acts as an independent contractor. The programme name does not create a legal partnership, employment, agency, joint venture or ownership interest. The Partner cannot bind KiqStat, give warranties on its behalf, collect customer payments or appoint subpartners without written authority.

2.3 An individual Partner must be at least 18. An entity's signatory must have authority to bind it. The Partner must supply accurate identity, contact, tax and bank details reasonably required for administration and lawful checks, and promptly report changes.

2.4 There is no minimum posting frequency, referral quota, guaranteed income or exclusivity obligation. Each party bears its own costs unless a specific expense is approved in writing in advance. Any separate campaign deliverables require a written agreement.

3 Eligible referrals and attribution

3.1 An eligible referral is a genuinely new customer who first clicks the Partner's activated personal link, then creates a KiqStat account within 90 days of that click, and makes a successful payment for a qualifying product under clause 4.2. Existing accounts, self-referrals, fabricated accounts and abusive or unlawful referrals do not qualify.

3.2 The first eligible partner link clicked wins. Subsequent clicks do not replace that attribution or restart the 90-day window. Referral codes are not used. Referral attribution alone gives the customer no discount.

3.3 KiqStat records the referral against the account at signup. The Partner must use the supplied link accurately and must not overwrite tracking, plant cookies without a genuine click, use forced redirects or otherwise manufacture attribution. Separate accounts created to bypass the existing-customer rule are excluded.

3.4 Cookie blocking, deletion, device changes or privacy choices can prevent tracking. Attribution is not guaranteed merely because a Partner claims to have introduced a customer. KiqStat will reasonably investigate credible errors using available, lawfully obtained click, signup and payment records. Any correction must satisfy the eligibility and first-click rules; records are evidence, not conclusive proof immune from challenge.

4 Commission calculation

4.1 The commission rate is the percentage of Net Payment stated in Annex A, as changed under clause 4.6. **Net Payment** means the amount KiqStat actually receives for the product, being the price of the product less any payment processor fee that KiqStat itself bears. Where the customer pays the processor's fee in addition to the price, that fee is not part of the price and is not deducted again. No overhead, marketing expense or other deduction is permitted in this calculation. Tax withholding from the Partner's payout is treated separately under clause 5.5.

4.2 Commission applies to payments for paid Pro and VIP plans on their monthly, three-month and yearly billing cycles. It includes qualifying renewals, upgrades and additional payments within the earning period. It does not apply to passes, trial offers or other time-limited promotional products, and excludes failed payments, free access, gifted access and amounts not actually received. A payment is counted once regardless of payment verification or notification retries.

4.3 The earning period for each referred customer starts when that customer's first successful payment is received and ends immediately before its first calendar anniversary. Payments received at or after that anniversary do not qualify. For a 29 February start, the anniversary is 28 February in the following year. Cancellation, reactivation or a plan change does not restart the period.

4.4 Commission is calculated on each payment, not the length of access purchased. A qualifying yearly payment therefore earns commission even if access extends beyond the earning period. Refunds and chargebacks remain subject to clause 5.

4.5 Calculations use actual transaction records. Where the processor has reported the fee for a payment, that figure is used; where it has not yet been reported, KiqStat may use a published estimate and must correct the entry to the actual figure within the next monthly statement. Amounts are rounded to the nearest kobo once per commission entry. Commission is recorded in the currency of the payment. Payouts are made in Nigerian naira. For a permitted foreign-currency payment, KiqStat uses the processor's actual naira settlement and attributable fee; if unavailable, the conversion basis must be agreed in writing before such payments qualify.

4.6 **Rate changes.** KiqStat may agree a higher rate for a Partner in writing, never above the ceiling in clause 4.8. KiqStat may change the standard rate or Annex A on at least 30 days' written notice. A change applies only to customers first attributed on or after its effective date. Existing referrals keep the rate that applied when they were attributed for the balance of their earning period, unless both parties agree otherwise in writing. If the Partner does not accept a change, it may terminate on the 30 days' notice and clause 11 applies. A change that reduces the rate for existing referrals needs the Partner's written agreement.

4.7 **Pilot.** The first 90 days after the Activation Date are a pilot. During the pilot either party may end the Agreement on seven days' written notice, and clause 11.3 then applies to customers who have already made a first payment. By the 15th business day after the pilot ends, KiqStat will tell the Partner in writing whether the Partner continues. If KiqStat gives no notice, the Partner continues on the terms of Annex A. KiqStat will review fraud indicators, refund rates and compliance in the pilot, and the Partner may ask for the results.

4.8 **Ceiling.** No commission rate under this Agreement, or under any later agreement or approval, will exceed 30% of Net Payment. KiqStat will not agree a rate that it has reason to believe would make a qualifying paid plan unprofitable under its internal full-usage cost review.

5 Holds, payment and adjustments

5.1 A valid commission is pending for 14 days after the underlying payment. It then becomes payable unless the payment is subject to a refund, chargeback or a documented dispute or fraud review. The hold does not mean that later refunds or statutory customer rights are excluded.

5.2 KiqStat pays payable balances of at least NGN 10,000 monthly, by bank transfer, no later than the 15th business day after the relevant calendar month ends. Only amounts payable at month-end enter that run. Smaller balances roll forward without expiry while the Agreement continues. Business day means a day other than a weekend or public holiday in Lagos, Nigeria.

5.3 The Partner must provide verified bank details in its own legal name, or an expressly approved lawful payee arrangement. Missing or incorrect details may delay payment; KiqStat must notify the Partner and retain the balance. Amounts must not be marked paid merely because they were exported for transfer. A failed transfer remains payable until successfully retried.

5.4 A full refund or chargeback reverses the corresponding commission; a partial refund reverses the proportion attributable to the refunded amount, capped at the commission originally credited. KiqStat will tell the Partner by statement, or sooner by email, when a commission is reversed. A reversal of a commission that has already been paid may be set off against future commissions with an itemised statement. On termination, any remaining overpayment is repayable within 30 days of an evidenced demand, subject to the dispute procedure. No unrelated penalty or processing loss is automatically charged to the Partner. If a chargeback is successfully overturned, the commission is reinstated where otherwise eligible.

5.5 The Partner is responsible for its own taxes. KiqStat may withhold only amounts required by applicable law and must provide the available evidence of deduction and remittance. Both parties must supply reasonably required tax documentation. No particular tax rate or exemption is assumed by this Agreement.

5.6 Customer refunds are governed by the customer terms and refund policy validly applicable to the transaction, together with mandatory law. KiqStat may issue refunds required by law or reasonably justified to resolve a genuine customer dispute, and must provide an explanation of resulting commission adjustments. The Partner cannot promise, approve or refuse refunds on KiqStat's behalf.

6 Reporting and commission disputes

6.1 KiqStat will provide dashboard access or an equivalent monthly statement showing referral counts, subscription activity, pending and payable commissions, payments and adjustments.

Customer information will use anonymised references; the Partner is not entitled to names, email addresses, payment credentials or identifiable customer lists.

6.2 The Partner should report an apparent error within 30 days of the statement or of reasonably discovering a concealed error, identifying the entry and available evidence. KiqStat will acknowledge within five business days and aim to resolve it within 20 business days, or explain the delay and next review date. These periods do not extinguish statutory rights or claims that could not reasonably have been discovered.

6.3 Undisputed amounts remain payable on schedule. KiqStat will provide enough redacted transaction detail to explain a challenged calculation without disclosing other customers' personal information or security-sensitive systems. An unresolved dispute proceeds under clause 15. Both parties must preserve relevant records while a notified dispute is pending.

7 Promotional conduct and approvals

7.1 The Partner must describe KiqStat accurately as the service it actually provides. It must not promise guaranteed wins, certain returns, risk-free betting, recovery of losses or financial security, or invent results, testimonials, endorsements or accuracy statistics. Predictions and probabilities must be presented with their limitations and without implying certainty. Any figure about KiqStat's record must be taken from its published track record page on the day of use and shown with that date.

7.2 The Partner must clearly disclose its commercial relationship and that it may earn commission from subscriptions. Disclosure must be prominent in each relevant promotion, using language understandable to its audience. The Partner must comply with applicable advertising, consumer protection and platform rules and any legally required age or territory restrictions.

7.3 Before publication, the Partner must obtain KiqStat's written approval for original or materially altered promotional claims and creatives. Current materials expressly approved for unchanged reuse need no repeated internal approval. KiqStat will coordinate any required regulatory advertising clearance; neither party may publish before applicable approvals are obtained. Internal approval is not regulatory clearance, and each party remains responsible for its own legal obligations.

7.4 The Partner must not target minors with betting-related promotion, encourage unaffordable or compulsive gambling, use harassment or unsolicited bulk messaging, buy or sell personal data unlawfully, impersonate KiqStat, or place promotions in unlawful or deceptive content. The Partner must not offer unauthorised discounts, cashback, prizes or incentives, or bid on KiqStat brand keywords, register confusing domains or create apparently official accounts without written consent.

7.5 The Partner must promptly remove or correct non-compliant content after notice, within 24 hours where reasonably practicable, and immediately stop further distribution. If removal is outside its control, it must request removal and document reasonable efforts. It must promptly refer customer complaints and regulatory enquiries affecting KiqStat to the notices email, without making admissions on KiqStat's behalf.

8 Brand and intellectual property

8.1 Each party retains its existing intellectual property. During active participation, KiqStat grants a limited, non-exclusive, non-transferable, revocable permission to use its approved brand materials solely for authorised promotion. No ownership is transferred. The Partner must follow supplied brand instructions and must not modify logos or remove legal notices without approval.

8.2 The Partner must hold the rights needed for its own promotional content, music, imagery and testimonials. KiqStat receives no general right to reuse the Partner's original content or likeness; any such reuse requires separate written permission. KiqStat may retain copies as evidence of compliance and performance.

9 Confidentiality and personal data

9.1 Each party must protect non-public commercial, technical, security and personal information received through the programme, use it only to perform this Agreement and disclose it only to persons who need it and are bound by appropriate duties. This excludes information independently developed, lawfully received without restriction or already public without breach. Legally required disclosure is permitted, with advance notice where lawful.

9.2 Each party must comply with applicable data protection law, including the Nigeria Data Protection Act 2023 where applicable, and use a lawful basis, appropriate notices and safeguards for its own processing. The Partner must not seek customer credentials, scrape KiqStat customer data, or upload contact lists to KiqStat without a separately approved lawful arrangement.

9.3 KiqStat is responsible for its referral tracking and account systems, related privacy and cookie disclosures, and any required consent mechanism. The Partner is responsible for its own channels and lawful audience communications. Neither party may process personal data on the other's behalf without separate written data-processing terms where required.

9.4 Each party must protect access credentials, restrict access and notify the other without undue delay, and where practicable within 24 hours of discovery, of a suspected security incident affecting programme information. This contractual notice does not replace any legally required regulatory or individual notification. The parties will reasonably cooperate in containment and lawful investigation.

9.5 On request or termination, confidential information must be returned or securely deleted unless retention is legally required or reasonably necessary for a pending claim. Retained information remains protected. Confidentiality continues for three years after termination and for as long as information remains a trade secret; personal-data duties continue for as long as the data is held.

10 Suspension and investigations

10.1 KiqStat may immediately suspend new referrals, access or specific promotional permissions on reasonable grounds of fraud, material breach, security risk, unlawful conduct or a regulatory direction. It may temporarily hold only commissions reasonably linked to the concern, unless a wider hold is legally required. Suspension alone is not proof of misconduct or grounds to confiscate valid earnings.

10.2 KiqStat must give the reason and scope promptly, unless prohibited by law or likely to materially compromise an investigation. The Partner may submit an explanation and relevant evidence. KiqStat will review within 15 business days and provide an outcome or written progress update, including the next review date, at least every 15 business days while a hold continues.

10.3 Confirmed ineligible commissions may be reversed with supporting reasons. If a concern is not substantiated, affected eligible commissions must be released in the next payout run. Unrelated, undisputed commissions remain payable. Reasonable, proportionate cooperation is required; neither party is entitled to unrestricted access to the other's systems.

11 Termination and surviving commissions

11.1 Either party may terminate without cause on 30 days' written notice (seven days during the pilot, clause 4.7). A material breach may be terminated if not remedied within ten business days after written notice. KiqStat may terminate immediately for established fraud, serious unlawful promotion, deliberate security misuse, an irremediable material breach or a legal requirement to stop. The Partner may terminate immediately for KiqStat's fraud or an irremediable material breach.

11.2 From the termination date, no new accounts qualify for attribution, and a customer who has been attributed but has not made a first successful payment by the termination date does not qualify. The Partner must stop using its referral link and KiqStat branding, remove controlled promotions within five business days, and return or delete protected information under clause 9.

11.3 Valid commissions earned before termination remain payable. A customer who made a first successful payment before the termination date (a **Locked Referral**) continues to earn commission for the remainder of that customer's 12-month earning period under clause 4.3, which ends no later than 12 months after the termination date. No other payment earns commission after termination. Proven fraudulent or otherwise ineligible referrals are excluded. If KiqStat terminates for the Partner's breach of clause 7 or for fraud, commission on customers acquired through the non-compliant promotion or the fraud is forfeited, and commission on other Locked Referrals continues. Legitimate referrals are not forfeited because of an unrelated breach.

11.4 After termination, payable balances are settled monthly without the NGN 10,000 minimum. Remaining holds, reversals and genuine disputes follow clauses 5, 6 and 10. Once all earning

periods and holds have ended, the final undisputed balance must be paid within 30 days. The Partner must maintain valid payment and contact details.

12 Service limitations and liability

12.1 KiqStat does not guarantee referral volume, subscription revenue, uninterrupted availability, the accuracy of every prediction or any betting outcome. It must nevertheless exercise reasonable care in operating the programme and calculating commissions. No provision excludes customer rights or any obligation that cannot lawfully be limited.

12.2 To the extent permitted by law, neither party is liable to the other for indirect or consequential losses or speculative future earnings. This does not exclude commission actually due, direct loss caused by breach or third-party amounts recoverable under clause 13.

12.3 Subject to clause 12.4, each party's total aggregate liability arising from this Agreement is capped at the higher of NGN 500,000 and all commissions paid or payable under it during the 12 months preceding the first event giving rise to the claim. Related events are treated as one event for this purpose.

12.4 The cap does not limit payment of valid commissions, repayment of evidenced overpayments, fraud, wilful misconduct, liability that cannot lawfully be limited, or the Partner's liability under clause 13. Data protection and confidentiality duties are not waived; statutory remedies and regulatory powers remain unaffected. Both parties must take reasonable steps to reduce avoidable loss.

13 Partner indemnity

13.1 The Partner must indemnify KiqStat against reasonable, evidenced third-party claims, direct losses and reasonable defence costs arising to the extent caused by the Partner's fraudulent referrals, unauthorised promises, unlawful promotion, infringement of third-party intellectual property, or breach of confidentiality or data protection duties. Regulatory penalties are included only where lawfully recoverable. No indemnity applies to the extent a loss is caused by KiqStat's own breach, negligence or misconduct.

13.2 KiqStat must promptly notify the Partner of a claim, take reasonable mitigation steps and allow reasonable participation in the defence. Delay reduces recovery only to the extent it prejudices the defence. No settlement binding the Partner may be made without its consent, not unreasonably withheld. KiqStat may control urgent regulatory responses and retain independent counsel where interests conflict, but recoverable costs must remain reasonable. No double recovery is permitted.

14 Disruption and programme changes

14.1 Neither party is responsible for delay to the extent caused by an event beyond its reasonable control, such as a natural disaster, widespread network failure or binding

government restriction, provided it promptly gives notice, mitigates the impact and resumes performance when reasonably possible. Lack of funds, ordinary business decline or an avoidable failure to maintain safeguards does not qualify.

14.2 Such an event does not erase commissions already earned. A payment deadline is deferred only while transfer is actually prevented and payment must resume promptly once possible. Either party may terminate on written notice if the disruption lasts more than 30 consecutive days; accrued rights and clause 11 survive.

14.3 KiqStat may change or discontinue subscription products and prices and will give reasonable advance notice of material programme impacts where practicable. This does not permit retrospective commission reductions. Changes to commission rates follow clause 4.6. Other material amendments to this Agreement require written acceptance by both parties; reasonable operational instructions may not override it. Urgent legal or security restrictions may take immediate effect with prompt explanation.

15 Notices and disputes

15.1 Notices must be sent to the emails in clause 1, as updated by written notice. Email is deemed received on the next business day if no delivery failure is reported. Termination, suspension, rate-change and amendment notices must clearly identify their purpose. Routine dashboard messages do not substitute for these notices.

15.2 Nigerian law governs this Agreement, subject to applicable mandatory laws. Authorised representatives will first try to resolve a dispute within 15 business days of written notice. They may agree to mediation, but neither party is compelled to incur mediation costs without agreement. If unresolved, the courts of competent jurisdiction in Lagos State, Nigeria have exclusive jurisdiction, except where mandatory law requires otherwise. Either party may seek urgent protective relief from a competent court.

16 General provisions and acceptance

16.1 This Agreement is the entire agreement on the referral programme and replaces earlier proposals on that subject, and replaces the Version 1 agreement as set out in Annex B. Customer terms govern customers, not the Partner's commission rights. Neither party may transfer this Agreement without the other's written consent, except that KiqStat may transfer it with its business to a successor that assumes all obligations, on written notice and without reducing accrued rights.

16.2 If a provision is unenforceable, it is severed only to the necessary extent and the rest continues where legally possible. Failure to enforce a right is not a waiver. Payment adjustments, confidentiality, intellectual property protection, liability, indemnity and dispute provisions survive as necessary to give them effect.

16.3 Each signatory confirms authority and acceptance of the completed Agreement. It may be signed in counterparts or by an electronic method valid under applicable law; each party must retain the agreed version and evidence of acceptance.

Annex A: Commission schedule

The rate for this Partner is **25% of Net Payment** (clause 4.1) on each qualifying payment inside the customer's 12-month earning period. The rate for a customer is the rate in force for the Partner when the customer is first attributed (clause 4.6). No rate will exceed 30% (clause 4.8).

Product	Billing period	Rate
Pro	Monthly	25%
Pro	Three months	25%
Pro	Yearly	25%
VIP	Monthly	25%
VIP	Three months	25%
VIP	Yearly	25%
Passes, trial offers and other time-limited products		No commission

Illustration at 25%, where the customer pays the listed price and the processor fee on top: Pro monthly NGN 5,000 earns NGN 1,250; Pro three months NGN 13,500 earns NGN 3,375; Pro yearly NGN 48,000 earns NGN 12,000; VIP monthly NGN 12,000 earns NGN 3,000; VIP three months NGN 32,400 earns NGN 8,100; VIP yearly NGN 115,200 earns NGN 28,800. Where KiqStat bears the processor fee, it is deducted first (clause 4.1). Prices change under clause 14.3; these figures are examples, not promises.

Annex B: Replacement of the Version 1 agreement

B.1 The Partner and KiqStat signed a Partner Referral Agreement (Version 1) on [DATE OF VERSION 1]. This Agreement replaces it from the Effective Date.

B.2 Commissions earned or pending under Version 1 before the Effective Date remain payable on their Version 1 terms and are paid in the same monthly run as commissions under this Agreement.

B.3 Customers attributed to the Partner before the Effective Date keep the rate in force when they were attributed (25%) and the 12-month earning period that began with their first successful payment. From the Effective Date, every other term of this Agreement, including clauses 4.6, 4.8 and 11, applies to those customers as well as to later ones.

B.4 The Partner's Activation Date is its activation date under Version 1, and the pilot in clause 4.7 does not apply.

B.5 Passes, trial offers and other time-limited products earn no commission from the Effective Date. Commission already earned on them under Version 1 is unaffected.

Signatures

For the KiqStat legal operator

Name: _____ Title: _____

Signature: _____ Date: _____

For the Partner

Name: _____ Title if applicable: _____

Signature: _____ Date: _____